



Notification Waiver Determination

Life Without Barriers – Mallee District Health & Support Service

Acquisition	Life Without Barriers applied for a notification waiver in respect of its proposed acquisition of Mallee District Health & Support Services Inc. (MDHSS), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	17 June 2026

Parties to the Acquisition	Life Without Barriers, is a not-for-profit organisation that provides comprehensive social services to communities across Australia. Relevantly, it is an NDIS-registered provider of disability services. It also provides in-home aged care services, providing independent living and behavioural support to elderly clients and persons with disabilities. These services are provided in various locations throughout Australia. MDHSS, provides primary and allied health, aged care, disability and community services in Mallee and surrounding areas. Relevantly, MDHSS' aged care services offering includes both in-home care for elderly clients, as well as operating independent living units and a respite care centre. As an unregistered disability support provider, its disability services are limited to a variety of everyday disability supports, provided the participant's funding is self-managed or plan-managed. MDHSS also operates a small medical centre in Mallee from which primary and allied health services are provided to Mallee residents. Many of these services (including podiatry, physiotherapy, pathology, dentistry and psychology) are supplied by independent contractors operating within MDHSS' medical centre. Mallee is a town in the East Gippsland region in Victoria, Australia. Life Without Barriers does not offer services within the East Gippsland region of Victoria.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular:

	a. there is no horizontal overlap between Life Without Barriers and MDHSS in the supply of in-home aged care and disability services in Mallacoota and surrounding areas and a small horizontal overlap in the wider regional area b. there are alternative suppliers of in-home aged care and disability services in Mallacoota and surrounding areas. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act